



For the Non-Recognition of the Conduct of the Russian Federation

Legal, ethical and political grounds for a necessary consistency · 2026

Manifesto for the Non-Recognition of the Conduct of the Russian Federation

Legal, ethical and political grounds for a necessary consistency

To whom it is addressed

To the governments of the Member States of the European Union and to all States party to the Geneva Conventions. To international institutions. To every citizen who believes that the law applies to all or applies to none. And to those who, reading the first manifesto of this platform, wondered whether its author applied the same standard to all violators of international law. This document is the answer.

I. Premise

On 24 February 2022 the Russian Federation invaded Ukraine. Not a "special military operation": an armed aggression against a sovereign State, in violation of Article 2(4) of the United Nations Charter — the founding norm of the international order built on the ruins of the Second World War.

Since then: cities razed to the ground, civilian infrastructure systematically targeted, summary executions documented in Bucha and Irpin, mass deportations. On 16 March 2022 the International Court of Justice ordered Russia to immediately suspend military operations. Russia ignored the order. The International Criminal Court issued arrest warrants against President Putin. Russia responded by indicting the Court's judges.

This manifesto is not born of allegiance to any side. It is born of the same principle that founds the first manifesto of this platform: no State is above international law. None.

II. The deported children

Among all documented crimes, one defines the nature of this war more than any other.

Ukraine has documented in detail — with place of origin and current location — over 19,500 minors deported to Russia or the occupied territories. Estimates by Yale University's Humanitarian Research Lab exceed 35,000. Researchers have identified 210 detention and re-education facilities, spread across 5,600 kilometres from the Black Sea to the Pacific: summer camps, cadet schools, orphanages, a military base, a monastery.

These children receive new names, false documents, Russian citizenship. They are placed in forced adoptions. They are punished for speaking Ukrainian. They are enrolled in paramilitary programmes where they learn to handle weapons and swear loyalty to the State that tore them from their families. Some are trained to fight — potentially against their own country.

Only about 1,300 have returned home.

The forcible transfer of children from one group to another is one of the constitutive acts of genocide under Article II(e) of the 1948 Convention on the Prevention and Punishment of the Crime of Genocide. Not by analogy. Not by extensive interpretation. By the literal text of the norm.

III. Legal framework violated

- Article 2(4) of the UN Charter — prohibition of the use of force against the territorial integrity of another State
- Article II(e) of the Genocide Convention — forcible transfer of minors
- Article 49 of the Fourth Geneva Convention — prohibition of deportation of civilians from occupied territory
- Article 8 of the Rome Statute — war crimes, including unlawful deportation
- Order of the International Court of Justice of 16 March 2022 (Ukraine v. Russian Federation), still unexecuted

On 17 March 2023 the International Criminal Court issued arrest warrants against **Vladimir Putin**, President of the Russian Federation, and **Maria Lvova-Belova**, Presidential Commissioner for Children's Rights, for the deportation and unlawful transfer of Ukrainian children. It is the first time in history that a head of State of a permanent member of the Security Council has been the subject of an international arrest warrant.

IV. Legal basis for non-recognition

The Articles on State Responsibility (ARSIWA, ILC/UN 2001), Articles 40 and 41, establish that in the face of serious breaches of peremptory norms of international law, other States are obliged to: not recognise as lawful the situation created by the breach; not render aid or assistance in maintaining that situation; cooperate to bring the breach to an end through lawful means.

The prohibition of aggression and the prohibition of genocide are peremptory norms (*jus cogens*). The obligation of non-recognition is not a political option: it is a legal obligation.

V. The test of consistency — double standards

Here this manifesto diverges from every similar document. Because the European Union, faced with Russia, has *already done* what the law requires.

It adopted unprecedented sanctions packages. It froze the Russian central bank's reserves. It publicly supported the warrants of the International Criminal Court. It welcomed millions of refugees. It declared, through concrete acts, that the conduct of an aggressor State would not be recognised as lawful.

And then, faced with violations of the same peremptory norms committed by the State of Israel, it chose silence, equivocation, uninterrupted cooperation.

This double standard is not a diplomatic detail. It is a self-inflicted wound on Western legal civilisation.

Israel is called "the only Western democracy in the Middle East". Very well: whoever claims membership of the West also claims its foundations — the primacy of law over force, the accountability of power, equality before the law. These principles were not born yesterday: they were refined through centuries of philosophy, revolutions, constitutions, courts. They are the most precious thing the West has to offer the world.

To exempt from the law precisely the State that proclaims itself part of this tradition is to overturn its meaning. A Western democracy is not judged by a lower standard: it is judged by the highest standard, because that is the one it itself proclaims. Belonging to the West is not an immunity — it is an assumption of responsibility.

When Europe sanctions Russia for the deportation of children and stays silent about those who use white phosphorus over civilian areas, it does not protect Israel: it discredits itself. It declares to the entire world that international law is a weapon against enemies, not a principle. And in that moment every autocrat on earth obtains the argument he was looking for: *your rules are hypocrisy*.

International law applied selectively is not law: it is power disguised as principle. And every selective application weakens all applications — including the just ones, including those against Russia. Whoever stays silent about a crime for reasons of alliance makes the condemnation of all other crimes less credible.

VI. Concrete measures

1. The maintenance of non-recognition of every Russian territorial annexation in Ukraine, including Crimea
2. Full cooperation with the ICC for the execution of the warrants against Putin and Lvova-Beleva
3. Targeted sanctions against all entities involved in the deportation of minors — including the companies documented in the Yale report of March 2026
4. Active support for programmes to identify and repatriate deported children
5. The application of these same standards to every State whose conduct violates the same peremptory norms — without geopolitical exceptions

VII. Fundamental distinction

This manifesto is not against Russia as a nation, nor against the Russian people. Thousands of Russian citizens have protested against this war, paying with prison, exile, their lives. Russian journalists have documented the crimes of their own government. Russian mothers have searched for their sons sent to die in a war they did not choose.

The distinction between State, government and people is not a rhetorical concession: it is the foundation of all serious legal and moral reasoning. It applies to Russia exactly as it applies to Israel. It is the same distinction, because it is the same principle.

Final declaration

I do not recognise as lawful the conduct of the Russian Federation in Ukraine. I do not recognise the deportation of 19,500 children as "humanitarian evacuation". I do not recognise the annexation of territories as "referendums". I do not recognise aggression as a "special operation". And I demand that the law Europe has proven able to apply to Russia be applied to all — beginning with those who proclaim themselves part of the West and its values. Because the law applies to all, or it applies to none.

Legal references

- Charter of the United Nations, Art. 2(4)
- Convention on the Prevention and Punishment of the Crime of Genocide (1948), Art. II(e)
- Fourth Geneva Convention (1949), Art. 49
- Rome Statute of the International Criminal Court, Art. 8
- ICJ, Order of 16 March 2022, Ukraine v. Russian Federation
- ICC, Arrest warrants of 17 March 2023 (Putin, Lvova-Belova)
- ARSIWA (ILC/UN 2001), Arts. 40-41
- Yale HRL, Willing Accomplices (March 2026); report on the 210 facilities (September 2025)